

Avdhesh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 September 2020 · WRIT - C No. - 12851 of 2020 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed seven weeks.**

HEADNOTE

The Allahabad High Court declined to entertain a writ seeking correction of a disputed electricity bill, holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 was an available statutory remedy. The petitioner was left to approach the Executive Engineer within two weeks; that authority was to consider and decide the application in accordance with law by a reasoned speaking order within four weeks after hearing him. Coercive action was stayed for seven weeks. The bill was not examined on merits.

FACTUAL SUMMARY

Avdhesh Kumar invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and electricity authorities. He sought a mandamus directing the respondents to decide his representation dated 18 July 2020 and to correct a disputed electricity bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and to issue a correct bill. The grievance, as the Court recorded, was the correctness of the bill raised against him. Counsel for the petitioner and for the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill; statutory remedy

HOLDING

A writ seeking correction of a disputed electricity bill will not be entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes an available statutory remedy. The consumer may approach the Executive Engineer or appropriate authority, who is to consider and decide the application in accordance with law by a reasoned speaking order after hearing. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Applied to refuse writ entertainment of Avdhesh Kumar's bill-correctness claim and to relegate him to the Executive Engineer under Clause 6.5, with a seven-week stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE REPRESENTATION DATED 18 JULY 2020

Left to the Executive Engineer or appropriate authority under Clause 6.5, to be decided in accordance with law. ¶ 1